PORTLAND PUBLIC SCHOOLS
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Date: October 29, 2025

To: Board of Education

From: Deborah Kafoury, Chief of Staff

CC: Superintendent Dr. Kimberlee Armstrong

Subject: Proposed Indemnification Policy

BACKGROUND

On October 20, 2025, the Policy Committee moved the Defense and Indemnification of District Employees and Board Members to the full Board for consideration. The revised policy was posted with other Board materials.

SUMMARY OF CHANGES

- The policy was revised to streamline the structure and clarify the language.
- Substantive changes to this policy are:
    - Incorporation of Board Resolution 7184, which expanded the indemnification and defense of employees acting in the course and scope of their employment;
    - Extension of policy coverage to Board members (previously Board members had only statutory tort claim coverage);
    - Addition of more detailed notice requirements and potential denial of coverage for failure to provide prompt notice to the District;
    - More explicit procedural requirements, including cooperation and settlement authority; and
    - More detailed exclusions from defense and/or indemnification.

RECOMMENDATION

Staff recommends the revisions to the full indemnification policy after completion of the 21-day public comment period.